

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DIOGENES PIOCHE,

Plaintiff,

-against-

CITY OF NEW YORK; NYPD Officer SEAN LISCOE (Shield No. 6790); POLICE OFFICER DARREN SUKENNIKOFF (Tax ID 961337); POLICE OFFICER JUAN MARTINEZ (Tax ID 953060); NYPD Officers JOHN and JANE DOE 1 through 10; and all defendants individually and in their official capacities,

Defendants.

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PLAINTIFF DIOGENES PIOCHE, by PLAINTIFF'S attorneys, Anna Berezovski, Esq, and the LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. PLAINTIFF DIOGENES PIOCHE, is a male and has been at all relevant times a resident of BRONX County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform

FIRST AMENDED COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendants NYPD Officer SEAN LISCOE (Shield No. 6790), POLICE OFFICER DARREN SUKENNIKOFF (Tax ID 961337), POLICE OFFICER JUAN MARTINEZ (Tax ID 953060), and NYPD Defendants John & Jane Doe 1 through 10 (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

STATEMENT OF FACTS

8. On or about December 18, 2019, at or around 9:09 p.m., PLAINTIFF was lawfully within the vicinity of Lafayette Avenue and Throgsneck Expressway, Bronx, New York.

9. PLAINTIFF was lawfully driving his gray 2019 Hyundai vehicle.

10. Several New York City Police Officers, including defendant NYPD Officer LISCOE, PO SUKENNIKOFF, PO MARTINEZ, and unidentified DOE Defendants, unlawfully stopped PLAINTIFF.

11. Defendants P.O. LISCOE, PO SUKENNIKOFF, PO MARTINEZ and the DOE Defendants approached PLAINTIFF and asked for his license and registration, which PLAINTIFF provided.

12. Defendants P.O. LISCOE, PO SUKENNIKOFF, PO MARTINEZ, and the DOE defendants then threatened that if PLAINTIFF did not exit the vehicle, he would physically pull him from the vehicle.

13. PLAINTIFF was frightened and exited the vehicle, to avoid force being used on him.

14. Notwithstanding the fact that Defendants Defendants P.O. LISCOE, PO SUKENNIKOFF, PO MARTINEZ, and the DOE defendants had no probable cause to believe that PLAINTIFF had committed any crimes or offenses, defendants escorted PLAINTIFF to the rear of the vehicle and placed PLAINTIFF into handcuffs.

15. Defendants Defendants P.O. LISCOE, PO SUKENNIKOFF, PO MARTINEZ, and the DOE defendants then searched the scene and did not claim to recover any contraband. However, later at the precinct defendant officers falsely claimed that they had recovered marijuana within the vehicle.

16. PLAINTIFF was subsequently transported to the police precinct.

17. At the precinct, defendants Defendants P.O. LISCOE, PO SUKENNIKOFF, PO MARTINEZ, and the DOE defendants used unnecessary and excessive use of force to pat down PLAINTIFF's genitals and his rectum area through his boxers. Defendants did not recover any contraband.

18. Defendant officers then took PLAINTIFF to the interrogation room where they read claimant his rights and PLAINTIFF asked for an attorney, but nonetheless they continued to question him.

19. At the precinct the officers, including defendants Defendants P.O. LISCOE, PO SUKENNIKOFF, PO MARTINEZ, and the DOE defendants falsely informed employees of the Bronx County District Attorney's Office ("DA's Office") that they had observed PLAINTIFF commit various crimes/offenses.

20. Neither Defendants P.O. LISCOE, PO SUKENNIKOFF, and PO MARTINEZ, nor the DOE defendants observed PLAINTIFF violate any laws / ordinances.

21. The allegations made by Defendants to the DA's Office were false, and the defendants knew them to be false at the time the defendants made the allegations.

22. The defendants officers, including Defendants P.O. LISCOE, PO SUKENNIKOFF, PO MARTINEZ, and the DOE defendants then forwarded these false allegations to the DA's Office in order to justify the unlawful arrest of PLAINTIFF and to persuade the DA's Office to commence and/ or continue the criminal prosecution of PLAINTIFF.

23. The defendants knew and understood that the DA's Office was relying on the truthfulness of defendants' claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFF. Defendants were aware that the DA's Office

assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

24. Thereafter, PLAINTIFF was transported to Central Booking, after arraignment PLAINTIFF was released after spending an extended period of time in custody.

25. Furthermore, PLAINTIFF was never charged with a traffic ticket and NYPD never indicated why they stopped PLAINTIFF or how they had cause to search his vehicle.

26. Nonetheless, PLAINTIFF appeared in court several times until PLAINTIFF's case was ultimately dismissed on or about January 23, 2020.

27. As a result of defendants' actions, PLAINTIFF suffered, and continues to suffer physical, emotional distress, mental anguish, fear, pain, bodily injury, anxiety.

CLAIM ONE

Under State Law

NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

28. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

29. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

30. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

31. Due to the negligence of the defendants as set forth above, PLAINTIFF suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation, shock, fright, and loss of freedom.

CLAIM TWO
Under State and Federal Law
UNLAWFUL STOP, SEARCH, AND SEIZURE

32. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

33. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

CLAIM THREE
Under State and Federal Law
FALSE ARREST

34. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

35. Defendant police officers arrested PLAINTIFF in the absence of probable cause and without a valid warrant.

36. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the PLAINTIFF's rights.

CLAIM FOUR
Under State and Federal Law
MALICIOUS ABUSE OF PROCESS

37. PLAINTIFF repeats and re-alleges each and every allegation as if fully set forth herein.

38. The individual defendants issued legal process to place PLAINTIFF under arrest.

39. The Municipal Defendants arrested PLAINTIFF in order to obtain collateral objectives outside the legitimate ends of the legal process.

40. The Municipal Defendants acted with intent to do harm to PLAINTIFF without excuse or justification.

41. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

CLAIM FIVE
Under State and Federal Law
MALICIOUS PROSECUTION

42. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

43. By their conduct, as described herein, defendants are liable to PLAINTIFF for having committed malicious prosecution under the laws of the State of New York.

44. Defendants maliciously commenced criminal proceeding against PLAINTIFF, falsely accusing PLAINTIFF of violating the law.

45. Defendants falsely and without probable cause charged PLAINTIFF with violations of the laws of the State of New York.

46. The commencement and continuation of the criminal proceedings against PLAINTIFF was malicious and without probable cause.

47. All charges were terminated in PLAINTIFF's favor.

48. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFF. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

49. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

CLAIM SIX
Under Federal Law
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

50. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

51. Defendants created false evidence against PLAINTIFF.

52. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

53. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

54. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

55. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, was put in fear for PLAINTIFF'S safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

CLAIM SEVEN
Under State and Federal Law
UNREASONABLE FORCE

56. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

57. The defendants violated the Fourth and Fourteenth Amendments and New York State Law because they used unreasonable, excessive, and unjustified force on PLAINTIFF.

58. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM EIGHT
Under Federal Law
FAILURE TO INTERVENE

59. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

60. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

61. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

62. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained

the damages hereinbefore alleged.

CLAIM NINE
Under State Law
ASSAULT and BATTERY

63. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

64. Defendants' aforementioned actions placed PLAINTIFF in apprehension of imminent harmful and offensive bodily contact.

65. Defendant police officers touched PLAINTIFF in a harmful and offensive manner.

66. Defendant police officers did so without privilege or consent from PLAINTIFF.

67. As a result of defendants' conduct, PLAINTIFF has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

CLAIM TEN
Under State and Federal Law
TRESPASS/UNLAWFUL ENTRY

68. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

69. At the aforesaid time and place, defendants suddenly entered the afore-referenced location without a valid warrant, consent, exigent circumstances, or other lawful justification.

70. Defendants' entry into the location was in violation of the law and constituted a trespass.

71. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM ELEVEN

Under Federal Law
DEPRIVATION OF FEDERAL RIGHTS

72. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

73. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

74. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

75. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

76. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM TWELVE
Under Federal Law
DELIBERATE INDIFFERENCE TO SAFETY/MEDICAL NEEDS

78. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

79. The individual defendants were aware of a risk to PLAINTIFF's safety and a need for medical care and failed to act in deliberate indifference to PLAINTIFF's needs.

80. Accordingly, defendants violated the fourteenth amendment because they acted with deliberate indifference to PLAINTIFF's medical needs and safety.

81. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM THIRTEEN
Under State Law
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

82. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

83. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

84. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

85. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

86. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to PLAINTIFF.

87. As a result of the aforementioned conduct, PLAINTIFF suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

CLAIM FOURTEEN
Under Federal Law
MUNICIPAL LIABILITY

88. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

89. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

90. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

91. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference

to the safety, well-being and constitutional rights of the PLAINTIFF.

92. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

93. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the PLAINTIFF as alleged herein.

94. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

95. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFF's constitutional rights.

96. The acts complained of deprived the PLAINTIFF of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and

proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
February 8, 2023

/s/

Anna Berezovski, Esq
Of Counsel to
THE LAW OFFICE OF KATHERINE E. SMITH
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ATTORNEY'S VERIFICATION

ANNA BEREZOVSKI, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she *of counsel* to THE LAW OFFICE OF KATHERINE E. SMITH the attorney for PLAINTIFF DUSTIN LOYD in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information is investigation and records in the file.

That the reason why the verification is made by the deponent and not by the PLAINTIFF is that the PLAINTIFF is not within the county wherein the deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
February 8, 2023

/S/
Anna Berezovski